

Tentative Rulings
July 24, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

16. *Santos, et al, v. Ozkarahan, et al*, Case No. CIVSB2317819

Plaintiff Lechel Prater's Motion to Compel Further Response to Third Amended Depo Notice
7/24/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **GRANT** and require the production of the at-issue video within 20 days. Alternatively, if Defendant Ozkarahan no longer has the video, he is to provide a Code-compliant response per Code of Civil Procedure section 2031.230.

Case Summary

This case is, in essence, a negligence and emotional distress action. Here, Plaintiffs are a married couple who lived at an apartment complex allegedly owned or run by Defendants. Plaintiffs assert on information and belief that Defendant Ozkarahan operates the property; the Ozkarahan Family Trust 2000 owns the property; and MK Ozkarahan Properties engaged in advertising, renting, and managing the property. (FAC, ¶¶6-7.)

The alleged facts are as follows: At about midnight on December 1, 2022, as Plaintiffs drove to the entrance of the property, they observed an unfamiliar vehicle parked in their parking space. Plaintiffs allege that a broken gate and broken access door lead the property to be unsecured and unsafe. After honking at the vehicle, Plaintiffs allege the occupants of the car began to shoot at them, ultimately shooting both Plaintiffs in the head and leading to severe injuries.

Following the event, on August 2, 2023, Plaintiffs filed a Complaint. Following a sustained demurrer, Plaintiffs filed the operative First Amended Complaint (FAC) on March 21, 2024. The FAC alleges identical causes to the prior Complaint, namely: (1) negligence; (2) premise liability; (3) breach of warranty of habitability; (4) nuisance; (5) negligent infliction of emotional distress (NIED); (6) intentional infliction of emotional distress (IIED); and (7) gross negligence.

Analysis

Relevant here, on December 18, 2025, Plaintiff Prater served a third notice to Defendant Ozkarahan for the Deposition of property manager (Nunez). The notice had 23 requests for production of documents (RPD). Importantly, Request No. 19 requested "All videos depicting the PARKING GATE located at the SUBJECT LOCATION from 2017 to the time of the INCIDENT." Defendant served objections on January 15, 2026, including an objection to Request 19 on the basis that the request was overly broad and unduly burdensome, among other things. (Nashalian Decl., ¶15 & Exh. 3.)

On January 21, 2026, the deposition went forward and Nunez testified that she had viewed video surveillance, including one that depicted the shooting suspects entering and exiting through the front gate. (Nunez Depo, pp. 43-48.) This motion to seek response to Request No. 19 and, specifically, the at-issue video followed.

Here, the issue is limited to the discrepancy between the objection to Request 19 and Nunez's deposition testimony that a second video exists. Good cause exists for compelling production of the video, as Nunez's testimony indicated that it showed the suspects entering and exiting the parking lot. Thus, the video is relevant to the subject matter of the litigation and material to the issues in the litigation.

Plaintiff Prater argues that Defendants must either produce the video or, if they are unable to because it is no longer in their possession, provide a code complaint response under section 2031.230. The Court agrees.

Defendants' counsel does not dispute the timeliness of the motion's filing, good cause existing, nor does he assert any of the objections raised in Nunez's initial response to Request 19. In fact, no opposition was filed nor is there even a dispute that Prater is entitled to the video. He simply states that "defendants are not in possession of any video of the incident other than that which has been already produced and which plaintiff acknowledges possession of . . . [i]f and when any 'second video' is located, the video will be produced to plaintiff's counsel immediately." (Longo Decl., ¶2-3.)

Given that Prater seeks a copy of the video through the appropriate discovery device and there is no opposition from Defendant in providing it, the Court would grant the motion and compel production of the video within twenty days. If Defendant is unable to do so because he cannot locate the video, then Defendant must provide a verified response that complies with section 2031.230.

18. *Kaur v. The Permanente Medical Group, Inc., et al*, Case No. CIVSB2519011
Defendants' Motion to Compel Arbitration
7/24/26, 9:00 a.m., S-17

Tentative Ruling

The Court would **GRANT** the motion to compel arbitration. The matter will be stayed until the completion of the arbitration.

Case Summary

This case arises is brought by a surviving spouse and relates to the death of her spouse (decedent) while in emergency care. Plaintiff is the surviving spouse. In short, the decedent passed from a heart attack on May 20, 2024, while receiving emergency care at Kaiser's Fontana Medical Center. Plaintiff alleges that, while decedent was receiving care, Defendant